Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1227
Claimant:	Thomas Ochoa
Adjuster:	Alison Sweeney

23 Sep 2024 - Claim opened following a report of a rear-end collision at a signalized intersection. Claimant reports stopping at a red light when the insured vehicle made contact with the rear bumper. Claimant states she is experiencing right knee pain and stiffness. Police report requested. No attorney representation noted; claimant is handling communications directly.

28 Sep 2024 - Spoke with claimant by phone. She reports the knee pain worsened overnight and she has an appointment with her primary care provider this week. Explained the medical documentation we will need to evaluate the injury claim, including treatment records and any imaging. Claimant asked general questions about the process and is comfortable proceeding without representation.

4 Oct 2024 - Insured's statement obtained. Insured acknowledges following too closely and did not see the stopped vehicle until impact. Insured reports no injuries. Photos of both vehicles received, showing rear damage to claimant's vehicle and front damage to insured's vehicle. Scene diagram reviewed against police report.

12 Oct 2024 - Received initial treatment records from claimant's provider. Diagnosis indicates a sprain of the right knee with swelling. Physical therapy referral noted. Recommended follow-up in four weeks. Claimant has not yet submitted any repair estimate or bills for the vehicle beyond the initial shop assessment.

18 Oct 2024 - Liability assessment completed. Based on the insured's admission and the physical evidence, liability appears clear. Advised claimant of the next steps, including the property damage settlement process and how medical bills will be reviewed once received. Claimant acknowledged the explanation. File remains open pending completion of treatment and receipt of final bills.

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Recorded Statement

Claim number:	C-1227
Statement of:	Thomas Ochoa
Taken by:	Alison Sweeney
Date:	26 Sep 2024

Q: Thanks for taking the time to speak with me today. This recorded statement is about the rear-end collision you were involved in here in Houston. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Please tell me in your own words what happened.

A: I was stopped at a red light on a main road, waiting to turn. The car behind me didn't stop in time and hit my rear bumper pretty hard.

Q: How fast do you think the other vehicle was going when it hit you?

A: I'd guess it was moving at a decent clip, maybe twenty or twenty-five miles an hour. I heard the brakes squeal just before the impact.

Q: Were you wearing your seatbelt?

A: Yes, I was.

Q: Did you feel any pain or discomfort right after the collision?

A: My knee hit the dashboard. It hurt right away, and by the time I got out of the car it was swollen and I could barley put weight on it.

Q: Have you seen a doctor or received any treatment for your knee?

A: Yes. I went to an urgent care clinic that same day, and they took X-rays. I've since been referred to an orthopedic specialist for an MRI and physical therapy.

Q: Do you still have pain or limited movement in the knee?

A: Yes. Stairs are difficult, and I've had to stop working some shifts because I can't stand for long periods.

Q: Is there anything else you think I should know about the accident or your injuries?

A: Not that I can think of right now. I just want to get my knee taken care of and get back to normal.

Q: Thank you. That concludes the statement.

A: Thank you.